

NATIONAL OCEANIC AND ATMOSPHERIC ADMINISTRATION (NOAA)
Commercial Weather Data Pilot (CWDP) Program – Wildfire Imagery Pilot Study
SYNOPSIS/SOLICITATION

- (i) This is a combined synopsis/solicitation for commercial products or commercial services prepared in accordance with part 12. This announcement constitutes the only solicitation. Offers are being requested and a separate written solicitation will not be issued.

Solicitation number **1332KP26R0016** is issued as a request for proposal (RFP) to acquire available commercial multi-spectral imagery observations and investigate the utility of radiometric data developed by commercial vendors to aid in wildfire detection and characterization, monitoring, and mapping.

This acquisition is a Total Small Business Set-Aside. This solicitation incorporates provisions and clauses by reference. The full text of provisions and clauses may be accessed electronically at www.acquisition.gov.

Defense Priorities and Allocations System (DPAS) and assigned ratings do not apply.

- (ii) Contract Line Item Numbers (CLINs) are to be determined based on the awarded quantities.
- (iii) Description of requirements for the items to be acquired is included in Section 2 and Attachment 1, "Statement of Work."
- (iv) Place of Delivery: Data shall be submitted as set forth in Section 2 and Attachment 1, "Statement of Work."
- (v) The solicitation document and incorporated provisions and clauses are those in effect through Federal Acquisition Circular FAC 2026-01, effective March 13, 2026.
- (vi) The Government intends to award one or more FIRM-FIXED PRICE (FFP) contracts. The associated NAICS code is 518210-- Computing Infrastructure Providers, Data Processing, Web Hosting, and Related Services with a corresponding small business size standard of \$40.0 million.
- (vii) RFO 52.212-1, Instructions to Offerors-Commercial Products and Commercial Services (SEP 2023) (Deviation RFO JAN 2026) applies to this acquisition. Addenda to 52.212-1, Instructions to Offerors - Commercial Products and Commercial Services, are included in Section 4.
- (viii) RFO 52.212-2, Evaluation-Commercial Products and Commercial Services (NOV 2021) (Deviation RFO JAN 2026) applies to this acquisition as set forth in Section 4.

- (ix) The clause at RFO 52.212-4, Terms and Conditions - Commercial Products and Commercial Services (NOV 2023) (Deviation RFO JAN 2026) applies to this acquisition. These terms and conditions will be incorporated by reference in any resulting award.
- (x) Additional contract requirements, terms, and conditions can be found in Attachment 1, "Statement of Work," and Section 2.
- (xi) Proposals are required to be received in the contracting office no later than **2:00 P.M., Eastern Time on April 30, 2026. Questions related to this RFP is due no later than 2:00 P.M. Eastern Time on April 20, 2026.**
- (xii) All proposals must be emailed to the attention of Suzanna Espinoza, Contracting Officer at: suzanna.espinoza@noaa.gov and Cherron E. Bennett-Pettus, Contract Specialist at: cherron.bennett-pettus@noaa.gov. For information regarding the solicitation, the Contracting Officer and Contract Specialist may be contacted via email at suzanna.espinoza@noaa.gov and cherron.bennett-pettus@noaa.gov. Telephone calls will not be accepted. Instructions for the submissions of proposals are presented in Section 4. Offerors are responsible for ensuring timely submission of proposals. Multiple emails may be sent in order to accommodate large file sizes.

This solicitation does not commit the Government to pay any cost for the preparation and submission of a proposal in response to this RFP.

Attachments:

Attachment 1: Statement of Work

Attachment 2: Price / Availability Schedule

SOLICITATION/CONTRACT/ORDER FOR COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES

NOTE: OFFEROR TO COMPLETE BLOCKS 12, 17, 23, 24, AND 30.

1. REQUISITION NUMBER 2. CONTRACT NUMBER 3. AWARD/EFFECTIVE DATE 4. ORDER NUMBER 5. SOLICITATION NUMBER 1332KP26R0016 6. SOLICITATION ISSUE DATE 04/07/2026 7. FOR SOLICITATION INFORMATION CALL: a. NAME CHERRON BENNETT-PETTUS b. TELEPHONE NUMBER (No collect calls) 8. OFFER DUE DATE/ LOCAL TIME 04/30/2026 1400 ED		9. ISSUED BY CODE SIAD-RED SIAD-RED 1325 EAST WEST HWY SSMC2, 11th FLOOR SILVER SPRING MD 20910 10. THIS ACQUISITION IS ☐ UNRESTRICTED OR ☒ SET ASIDE: 100.00% FOR: ☒ SMALL BUSINESS ☐ WOMEN-OWNED SMALL BUSINESS (WOSB) NORTH AMERICAN INDUSTRY CLASSIFICATION STANDARD (NAICS): ☐ HUBZONE SMALL BUSINESS ECONOMICALLY DISADVANTAGED 518210 ☐ SERVICE-DISABLED VETERAN-OWNED WOMEN-OWNED SMALL BUSINESS (EDWOSB) SIZE STANDARD: ☐ SMALL BUSINESS (SDVOSB) ☐ 8(A) \$40 11. DELIVERY FOR FREE ON BOARD (FOB) DESTINATION UNLESS BLOCK IS MARKED ☒ SEE SCHEDULE 12. DISCOUNT TERMS 13a. THIS CONTRACT IS A ☐ RATED ORDER UNDER THE DEFENSE PRIORITIES AND ALLOCATIONS SYSTEM - DPAS (15 CFR 700) 13b. RATING 14. METHOD OF SOLICITATION REQUEST ☐ REQUEST ☐ INVITATION ☒ FOR PROPOSAL ☐ FOR QUOTE (RFQ) ☐ FOR BID (IFB) (RFP)													
15. DELIVER TO CODE NEEA0002 NOAA/NESDIS/OSAAP 1335 EAST WEST HWY SSMC1, ROOM 5300 SILVER SPRING MD 20910 16. ADMINISTERED BY CODE SIAD-RED SIAD-RED 1325 EAST WEST HWY SSMC2, 11th FLOOR SILVER SPRING MD 20910		17a. CONTRACTOR/ OFFEROR CODE FACILITY CODE 18a. PAYMENT WILL BE MADE BY CODE TELEPHONE NUMBER													
☐ 17b. CHECK IF REMITTANCE IS DIFFERENT AND PUT SUCH ADDRESS IN OFFER ☐ 18b. SUBMIT INVOICES TO ADDRESS SHOWN IN BLOCK 18a UNLESS BLOCK BELOW IS CHECKED ☐ SEE ADDENDUM		<table border="1" style="width: 100%; border-collapse: collapse;"> <thead> <tr> <th style="width: 10%;">19. ITEM NO.</th> <th style="width: 50%;">20. SCHEDULE OF SUPPLIES/SERVICES</th> <th style="width: 10%;">21. QUANTITY</th> <th style="width: 10%;">22. UNIT</th> <th style="width: 10%;">23. UNIT PRICE</th> <th style="width: 10%;">24. AMOUNT</th> </tr> </thead> <tbody> <tr> <td style="text-align: center; vertical-align: top;">0001</td> <td style="vertical-align: top;"> Period of Performance: 06/01/2026 to 04/01/2027 Phase 1: Preparation - 1 month In this initial phase, the Contractor shall Continued... (Use Reverse and/or Attach Additional Sheets as Necessary) </td> <td></td> <td></td> <td></td> <td></td> </tr> </tbody> </table>		19. ITEM NO.	20. SCHEDULE OF SUPPLIES/SERVICES	21. QUANTITY	22. UNIT	23. UNIT PRICE	24. AMOUNT	0001	Period of Performance: 06/01/2026 to 04/01/2027 Phase 1: Preparation - 1 month In this initial phase, the Contractor shall Continued... (Use Reverse and/or Attach Additional Sheets as Necessary)				
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30a. SIGNATURE OF OFFEROR/CONTRACTOR 30b. NAME AND TITLE OF SIGNER (Type or print) 30c. DATE SIGNED		31a. UNITED STATES OF AMERICA (SIGNATURE OF CONTRACTING OFFICER) 31b. NAME OF CONTRACTING OFFICER (Type or print) SUZANNA ESPINOZA 31c. DATE SIGNED													

19. ITEM NO.	20. SCHEDULE OF SUPPLIES/SERVICES	21. QUANTITY	22. UNIT	23. UNIT PRICE	24. AMOUNT
0002	supply the necessary technical documentation which may include format specifications, calibration data, and any other information that will be needed to ingest and process the data. Delivery mechanisms and data handling processes will be communicated to the Contractor. The Contractor will provide engineering support as needed to the Government to enable the acquisition and processing of the supplied datasets. A delivery of 24-hours of sample data may be required during this phase and used to test and adjust the delivery and data flow process as needed. Product/Service Code: DF10 Delivery: 06/01/2026 Phase 2: Data Delivery - 6 months During this phase, the Contractor shall provide a series of data deliveries over a period of 6 months, in accordance with the requirements specified in this document. The start and end date/time of this delivery period will be coordinated with the Contracting Officer (CO) and Contracting Officer's Representative (COR). Product/Service Code: DF10 Delivery: 07/01/2026 Continued...				

32a. QUANTITY IN COLUMN 21 HAS BEEN

☐ RECEIVED☐ INSPECTED☐ ACCEPTED, AND CONFORMS TO THE CONTRACT, EXCEPT AS NOTED: _____

32b. SIGNATURE OF AUTHORIZED GOVERNMENT REPRESENTATIVE

32c. DATE

32d. PRINTED NAME AND TITLE OF AUTHORIZED GOVERNMENT REPRESENTATIVE

32e. MAILING ADDRESS OF AUTHORIZED GOVERNMENT REPRESENTATIVE

32f. TELEPHONE NUMBER OF AUTHORIZED GOVERNMENT REPRESENTATIVE

32g. EMAIL OF AUTHORIZED GOVERNMENT REPRESENTATIVE

33. SHIP NUMBER

34. VOUCHER NUMBER

35. AMOUNT VERIFIED
CORRECT FOR

36. PAYMENT

37. CHECK NUMBER

☐ PARTIAL ☐ FINAL☐ COMPLETE ☐ PARTIAL ☐ FINAL

STOCK RECORD (S/R)

38. S/R ACCOUNT NUMBER

39. S/R VOUCHER NUMBER

40. PAID BY

41a. I CERTIFY THIS ACCOUNT IS CORRECT AND PROPER FOR PAYMENT

41b. SIGNATURE AND TITLE OF CERTIFYING OFFICER

41c. DATE

42a. RECEIVED BY (Print)

42b. RECEIVED AT (Location)

42c. DATE RECEIVED (MM/DD/YYYY)

42d. TOTAL CONTAINERS

NAME OF OFFEROR OR CONTRACTOR

ITEM NO. (A)	SUPPLIES/SERVICES (B)	QUANTITY (C)	UNIT (D)	UNIT PRICE (E)	AMOUNT (F)
0003	Phase 3: Evaluation - 3 months In this final phase, the Contractor will be available for limited reachback engineering/technical support as needed for problem resolution and technical assistance, as the Government evaluates the supplied dataset. Product/Service Code: DF10 Delivery: 01/01/2027				

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Section 1 - SCHEDULE OF SUPPLIES/SERVICES

Item Number	Description	Quantity	Unit	Unit Price	Amount
0001	Phase 1: Preparation - 1 month In this initial phase, the Contractor shall supply the necessary technical documentation which may include format specifications, calibration data, and any other information that will be needed to ingest and process the data. Delivery mechanisms and data handling processes will be communicated to the Contractor. The Contractor will provide engineering support as needed to the Government to enable the acquisition and processing of the supplied datasets. A delivery of 24-hours of sample data may be required during this phase and used to test and adjust the delivery and data flow process as needed. Product/Service Code: DF10				
0002	Phase 2: Data Delivery - 6 months During this phase, the Contractor shall provide a series of data deliveries over a period of 6 months, in accordance with the requirements specified in this document. The start and end date/time of this delivery period will be coordinated with the Contracting Officer (CO) and Contracting Officer's Representative (COR). Product/Service Code: DF10				
0003	Phase 3: Evaluation - 3 months In this final phase, the Contractor will be available for limited reachback engineering/technical support as needed for problem resolution and technical assistance, as the Government evaluates the supplied dataset. Product/Service Code: DF10				

Attachment Number	Title	Date
1	Attachment 1 - Statement of Work	04/07/2026
2	Attachment 2 - Price - Availability Schedule	04/07/2026

Section 2 - STATEMENT OF WORK

2 STATEMENT OF WORK

ATTACHMENT 1

Wildfire Imagery Pilot–Statement of Work

I. INTRODUCTION

The National Oceanic and Atmospheric Administration's (NOAA) mission is to understand and predict changes in climate, weather, oceans, and coasts, to share that knowledge and information with others as the Nation's authoritative environmental intelligence agency. NOAA is committed to improving public predictions to protect life and property.

Wildfires pose a significant threat to communities across the United States, and NOAA's observations are crucial for both fire mitigation and response efforts. In particular, early fire detection and monitoring of fire intensity and progression are critical for first response and wildfire incident management, both of which the National Weather Service supports. NOAA seeks to augment its remote sensing fire detection and monitoring capabilities with commercial space-based multispectral capabilities. These commercial observations will aid in modernizing fire warnings and synthesizing data from multiple sources to support time-critical decision-making.

The NESDIS Commercial Data Program (CDP) pursues demonstration projects on behalf of NOAA and assesses the viability of assimilating commercially provided satellite data and products to diversify NOAA's portfolio of data collection capabilities. Through the NESDIS CDP, NOAA intends to conduct a commercial data Pilot Study that may help NOAA meet its terrestrial environment mission objectives. For this Pilot Study, NOAA will use Pilot Study data to assess the quality and impact of available commercial multispectral imagery, including infrared capabilities, and to investigate the utility of radiometric data developed by commercial vendors to aid in wildfire detection, monitoring, and mapping. NOAA will assess thermal-based fire detection performance compared to NOAA's Advanced Baseline Imager (ABI) and Visible Infrared Imaging Radiometer Suite (VIIRS) instruments. NOAA will use these observations to generate fire detection and characterization intelligence and to assess their value within an integrated data and application framework. NOAA will focus these efforts on use cases related to protecting life and property.

II. DATA SPECIFICATION REQUIREMENTS

The Contractor for this Pilot Study shall supply multi-spectral observation data that, preferably, includes visible, near infrared, short-wave infrared, mid-wave infrared, and long-wave infrared channels collected on-orbit from one or more satellites. The observation data will primarily be used to evaluate commercial multispectral imagery for wildfire detection, characterization, monitoring, and mapping.

1. The requirements set forth below constitute the specific operational measurement requirements for the Pilot Study. Requirements are categorized as *threshold* values, representing minimum acceptable levels, and *objective* values, representing desired levels of performance with increased utility. Threshold and objective requirements specified in this document are not necessarily indicative of requirements that may be developed for future contracts or solicitations.

2. The threshold requirements define the minimum acceptable performance levels; failure to meet

them may result in no contract award.

3. For the objective requirements, it is understood that contractors may not be able to meet all objective requirements. Contractors proposing to deliver data that do not meet one or more objective requirements during the data delivery period shall clearly identify:

1. the requirement(s) not met,
2. the reason(s) for not meeting the requirement(s), and
3. the expected impact on data quality, operational usability, and evaluation outcomes.

4. Due to the nature of this Pilot Study, it is understood that contractors may not be able to meet all requirements presented. Contractors proposing to deliver data that does not meet a requirement during the Pilot Study data delivery period should indicate the nature of the discrepancy, the reason for not meeting the requirement, and the expected impact.

II.A. DEFINITIONS

1.

1. NOAA Data Processing Level Definitions include:

2. Table 1. NOAA Data Processing Level

Data Level	Description	Multispectral Imagery Examples
Level 0	Reconstructed, unprocessed instrument and payload data at full resolution, with any and all communications artifacts (e.g., synchronization frames, communications headers, duplicate data) removed.	Raw detector counts from each channel, time stamps for each scan line, scan geometry and sensor view angles, instrument telemetry.
Level 1A (L1A)	Level-1A (L1A) data are reconstructed and time-ordered instrument measurements that have been de-packetized and quality-checked but remain uncalibrated.	Uncalibrated digital counts from each channel with time, scan angle, and instrument telemetry.
Level 1B (L1B)	Level-1B (L1B) data contain radiometrically calibrated and geolocated radiance measurements for each spectral band. Processing includes: conversion from raw counts to physical radiance units; application of calibration coefficients; assignment of Earth-location coordinates (geolocation) and quality flags and metadata. L1B data are the primary input for generating geophysical products.	Calibrated, geolocated radiances or reflectances for each spectral band and spatial pixel.
Level 1C (L1C)	Resampled and geolocated brightness temperature data projected onto a standard Earth grid, enabling multi-sensor analysis and model ingestion.	Brightness temperatures gridded to a fixed Earth coordinate system (e.g., EASE-Grid).
Level 2 (L2)	Level-2 (L2) data are derived geophysical products — such as cloud properties, sea-surface temperature, aerosol optical depth, fire detections and fire radiative power, and vegetation indices — computed from Level-1B radiances and ready for scientific and operational use.	Cloud properties, sea-surface temperature, aerosol optical depth, fire detections and fire radiative power

2. **Metadata** is structured, descriptive information that documents the characteristics of a dataset. They provide essential context about the data's content, origin, purpose, quality, format, spatial and temporal coverage, processing history, and usage constraints. Metadata enables effective data discovery, interpretation, integration, management, and reuse by both humans and machines. High-quality metadata are critical for ensuring transparency, traceability, and interoperability within NOAA's data enterprise and across the broader scientific community.
3. For additional guidance on metadata standards and practices, see NOAA's National Centers for Environmental Information (NCEI): <https://www.ncei.noaa.gov/resources/metadata/introduction-to-metadata-at-ncei>
3. **Latency** of a data product is defined as the difference between the time the instrument acquires data in orbit and the time the data are received into the NESDIS Common Cloud Framework (NCCF) or alternate NESDIS cloud environment.
4. **Satellite data availability** is the percentage of satellite-generated data that, during a given time period, is accessible, usable, and delivered as expected to users. It reflects the overall capability of the satellite system—including onboard sensors, communication links, ground stations, and processing infrastructure—to provide data continuously and without interruption.

II.B. OBSERVATION CAPABILITY AND REQUIREMENTS

1.
 1. The Contractor shall supply multispectral observation data. The requirements set forth below constitute the measurement requirements.
 2. Spectral acquisitions must remain within the Earth exploration satellite service (EESS) allocations, as specified in the [FCC Online Table of Frequency Allocations](#), to avoid compromising system performance or violating regulatory constraints.
 3. Table 2, summarized below, lists the spectral guidance and acceptable capabilities for multispectral radiance observations for Fire Imagery. The Contractor shall provide radiance observations that, at a minimum, include at least one channel in each of the specified spectral ranges. Additional spectral observations, if available, shall also be provided.
2. Table 2. Spectral Guidance for Multispectral Radiance Observations for Fire Detection Imagery

Spectral Band	Spectral Channel Ranges (μm)	Primary Use
Visible / Near Infrared	0.6 - 0.9	False Alarm Screening
Shortwave / Midwave Infrared	3.5 - 4.2	Active Fire Detection and Characterization
Longwave Infrared	8.0 - 12.5	Active Fire Detection and False Alarm Screening

5. Table 3, summarized below, presents the observational requirements for multispectral imagery for fire imagery detection. The Contractor shall adhere to these requirements and meet or exceed the stated thresholds in Table 3.

The contractor shall deliver at least 80% of the constellation-level data (full-swath data) over a 3-9 month period during peak wildfire season (June - November), when any part of the full satellite swath intersects a predefined region of interest, with a primary focus on the western United States. The contractor may provide two pricing options: one for a region of interest that is 1900 km in the north/south direction and 1000 km in the east/west direction, and another for a 950 km (N/S) x 500 km (E/W) region. The location of the region of interest will be based on wildfire activity during the 3-9 month pilot period.

Table 3. Multispectral Radiance Data Requirements for Fire Detection Imagery

Performance Level	Threshold Requirement
Horizontal Spatial Resolution (at nadir)	Threshold: 200 m, Objective: 50 m
Geolocation Accuracy	Threshold: 100% of Horizontal spatial resolution, Objective: 50% of Horizontal spatial resolution
L1B product Latency	Threshold: 3 hours, Objective: 60 minutes

III. DELIVERY REQUIREMENTS

Contractors shall supply data that meets the following requirements:

1. Provide Level 1 data products consistent with or improving upon the spatial and radiometric data characteristics of NOAA's [Visible Infrared Imaging Radiometer Suite \(VIIRS\)](#) sensor. VIIRS serves as references for spatial resolution, radiometric performance, and geolocation accuracy.

As defined in Section II.A, data products shall include, at a minimum:

- a. Level 1B: Calibrated and geolocated radiances in $\text{Wm}^{-2}\text{sr}^{-1}\mu\text{m}^{-1}$ units along with Lookup Tables (LUTs) or band-specific information to convert them to reflectance (unitless) and brightness temperatures (Kelvin). These radiometrically calibrated measurements shall be traceable to onboard blackbody references or other high-fidelity validation references and reported at the sensor's native resolution. Level 1B products shall be formatted as NetCDF, HDF5, or geotiff files.
 - b. Level 1C: Level 1B data resampled onto an orthomosaic using a fixed Earth grid. Level 1C products shall be formatted as NetCDF, HDF5, or geotiff files.
2. The Contractor shall ensure continuous and contiguous data coverage over geographic regions and periods of interest, and deliver all collected data without interruptions, providing a complete record of observations in near real-time.
 1. At a minimum, the Contractor must have the capability to provide contiguous data, without temporal or spatial gaps, along-track for one satellite. Cross-track coverage shall

be sufficient to meet the spatial and temporal coverage requirements as specified in this SOW.

3. To ensure consistent delivery of supplementary commercial multispectral radiometric data, overall constellation-level data availability shall serve as the primary performance metric. The Contractor shall maintain at least 80% operational availability. This availability accounts for routine maintenance, calibration activities, and orbital dynamics, and ensures that the spacecraft are capable of supporting NOAA's data acquisition needs. This constellation-level approach ensures sufficient data continuity to support NOAA mission needs while allowing flexibility in individual satellite performance.
4. The product latency of multispectral radiometric observations delivered by the Contractor, when averaged over any continuous thirty-day period, shall meet or exceed the required latency as specified in Table 3.
5. The Contractor shall ensure cross-platform data consistency across their constellation of commercial multispectral instruments. All instruments shall support "mix-and-match" interoperability, enabling seamless integration of radiance data regardless of satellite platform.
 1. All instruments must have consistent calibration algorithms and gain models post-launch, with updates synchronized across the constellation.
 2. Data products must be traceable to recognized reference standards, with VIIRS designated as the primary external reference instrument.
 3. Timestamps associated with all mission data—including metadata, telemetry, and science observations—must maintain consistency across satellites to within ± 1 second to ensure compatibility in time-sensitive processing workflows.
 4. The Contractor shall maintain all technical documentation, including calibration history and consistency reports, and ensure it is accessible to the Government in accordance with applicable data access provisions.
6. In the event of data anomalies or as requested by the Government, the Contractor shall provide Level 0 data to support diagnostic analysis and root cause investigation and/or to perform independent calibration/validation by the Government or its designated representatives.
7. All satellite or instrument configuration changes that may impact the quality, calibration, or continuity of science data shall be documented in a change log. Notifications of such changes shall be provided to the designated Government point of contact within 24 hours.
8. The Contractor shall provide all necessary technical documentation to support data understanding, usage, and validation. At a minimum, this shall include:
 1. Algorithm Theoretical Basis Documents (ATBDs) – Describing the scientific rationale, processing methodology, and assumptions underlying data generation algorithms.

2. Documentation and data files to support characterization, quality control, and calibration/validation activities, including but not limited to:
 1. Spectral response functions.
 2. Calibration coefficients to convert pixel-based digital values into radiance, and the reflectance and brightness temperature equivalents.
 3. Pixel-based geolocation information, including terrain correction.
3. Pre-launch and on-orbit calibration reports.
4. Documentation of quality control flags and calibration/validation indicators.
5. User guides and detailed data specification documents.
9. Data delivery shall follow the following processes:
 1. The data delivery process along with file naming conventions, data formats, and metadata formats shall follow standard [NESDIS methods and protocols](#). The Contractor shall deliver all files for secure ingest to the NESDIS Common Cloud Framework (NCCF) in accordance with the NCCF Interface Control Document (ICD) or alternative secure ingest methods such as the NESDIS Innovation Hub cloud services. The Contractor shall, upon receipt of alert notifications, resolve and (as needed) redeliver data files when data latency requirements can still be met. Re-delivered file names shall include a date or identifier unique to that delivery.
 2. The data descriptor files shall conform to the [International Organization for Standardization](#) (ISO) 19115-1:2014 and applicable amendments (content) and ISO 19139-1:2019 and applicable amendments (XML schema) standards.
 3. Data shall be provided only from instruments on satellites with an assigned World Meteorological Organization (WMO) satellite identifier or a unique, internationally recognized identifier such as the COSPAR ID.
 4. The data delivery process shall follow NOAA security requirements (see Section VI. SECURITY REQUIREMENTS).

IIIA. OPTIONAL DELIVERY REQUIREMENTS

Contractors should consider supplying optional data that meets the following requirements:

1. Provide Level 2 (if available) data products consistent with or improving upon the spatial and radiometric data characteristics of NOAA's [Visible Infrared Imaging Radiometer Suite \(VIIRS\)](#) mission. VIIRS serves as references for spatial resolution, radiometric performance, and geolocation accuracy. As defined in Section II.A, data products shall include:
 - a. Level 2 (if available): Sparse data array(s) containing pixel-based active fire detection information, including essential attributes such as date and time of observation in UTC, center latitude/longitude coordinates, satellite and solar zenith and azimuth angles, effective pixel area, and fire radiative power (FRP) of fire-affected pixels. Optimally provide complementary 2D fire masks describing primary pixel classes (e.g., active fire, clear land, cloud, water), preferably in NetCDF, HDF5, or geotiff format.

IV. CONTRACTING OFFICER'S REPRESENTATIVE

In accordance with CAR Clause 1352.201-72, a Contracting Officer's Representative (COR) will be designated at award. The COR may provide technical direction and has the authority to accept delivery. The COR is not authorized to make any commitments or otherwise obligate the Government or authorize any changes which affect the contract price, terms, or conditions of the award. Any Contractor request for changes shall be referred to the Contracting Officer directly or through the COR.

No such changes shall be made without the express written prior authorization of the Contracting Officer.

A Task Manager (TM) will be designated at award. The TM manages the contract cost, schedule, performance and risks. The TM does not have delegated authority to represent the Contracting Officer or bind the Government. The TM cannot change, waive, add, or request any additional specifications or performance.

V. PERFORMANCE SCHEDULE

The Pilot study will be conducted with the following schedule:

Post-Award:

The Contractor shall participate in a post-award kick-off meeting, no later than 2 weeks after award. Additionally, NOAA/NESDIS CDP may require the Contractor to deliver 48-72 hours of on-orbit data to facilitate Government preparation of data ingestion and conversion.

Phase 1: Preparation - 1 month

In this initial phase, the Contractor shall supply the necessary technical documentation which may include format specifications, calibration data, and any other information that will be needed to ingest and process the data. Delivery mechanisms and data handling processes will be communicated to the Contractor. The Contractor will provide engineering support as needed to the Government to enable the acquisition and processing of the supplied datasets. A delivery of 24-hours of sample data may be required during this phase and used to test and adjust the delivery and data flow process as needed.

Phase 2: Data Delivery - 6 months

In this phase, the Contractor shall supply a series of data deliveries for a period of 6 months meeting the requirements specified in this document (see Sections II, III, IV, V, VIII). All proposals must include detailed cost and performance breakdowns for each monthly increment within this range to facilitate a scalable evaluation of the service requirements. The start and end date/time of this data delivery period will be coordinated with the CO and COR.

Phase 3: Evaluation - 3 months

In this final phase, the Contractor will be available for limited reachback engineering/technical support as needed for problem resolution and technical assistance, as the Government evaluates the supplied dataset.

VI. SECURITY REQUIREMENTS

The Contractor shall comply with CAR 1352.239-72, section (i). The Contractor may request COR approval of alternate security accreditation methodologies for compliance with section (i) including: information security assessment methodology promulgated by the U.S Federal Government (specifically, National Institute of Standards and Technology (NIST) Special Publication (SP) 800-37, NIST SP 800- 53, and NIST SP 800-171), or internationally recognized private industry information technology (IT) security frameworks (such as International Standards Organization (ISO)/International Electrotechnical Commission (IEC) 27033, 27001, 27006 and 27002, or Control Objectives for Information and Related

Technology (COBIT)). The Contractor will provide an analysis for alternative methodologies compared to SP 800-53 high impact baseline identifying any gaps.

The Contractor shall deliver files to NOAA ingest using either Hypertext Transfer Protocol Secure (HTTPS) (preferred) or Secure File Transfer Protocol (SFTP). The Contractor shall use a data integrity method compliant with the NESDIS Cloud System Data Ingest and Data Distribution Services Interface Control Document (ICD) and approved by NOAA.

VII. DATA RIGHTS

Per this contract, the Contractor grants NOAA a perpetual, non-exclusive, irrevocable, worldwide license to use, reproduce, and create NOAA-derived and value-added products with the data, in any manner and for any purpose, and to authorize others to do so on its behalf (including other contractors and recipients of financial assistance awards). NOAA Level-2 data products can be shared with unlimited distribution after 24 hours.

Furthermore, the Contractor shall provide NOAA the right to distribute all data to all U.S. Government agencies and foreign government or intergovernmental entities, including National Meteorological and Hydrological Services, WMO-designated Regional Specialized Meteorological Centers, members of the Coordination Group for Meteorological Satellites, university research centers, and other entities responsible for national meteorological, space weather, emergency response, or hydrological services, immediately after receipt at NOAA, for non-commercial use but not for further distribution.

In addition to data deliveries, the Government requests specific documentation to support understanding, usage, and validation of the data. Contractors shall define the distribution rights for the documentation required. All documentation provided that is marked as 'Proprietary' or 'Confidential'—including detailed instrument specifications and satellite engineering data—shall be treated as vendor-proprietary. NOAA agrees to protect such documentation from unauthorized disclosure and will not share, publish, or distribute it to non-NOAA entities or third parties without the express written consent of the Contractor.

NOAA will ensure that any non-NOAA entity receiving restricted data, including documentation, is made aware of the identified use and distribution restrictions associated with the data sharing rights specified in this contract. If NOAA becomes aware that an entity is not adhering to those restrictions, NOAA will seek to ensure compliance, and if unsuccessful, may terminate the entity's access to the data. NOAA, however, has no additional obligations under this contract related to data use by third parties. In no event is NOAA liable to the contractor for third party use or release of contractor data.

Section 3 - CONTRACT CLAUSES (TERMS AND CONDITIONS)

FAR 52.202-1 Definitions. (JUN 2020)

FAR 52.203-5 Covenant Against Contingent Fees. (MAY 2014)

FAR 52.203-7 Anti-Kickback Procedures. (JUN 2020)

FAR 52.203-12 Limitation on Payments to Influence Certain Federal Transactions. (JUN 2020)

FAR 52.203-17 Contractor Employee Whistleblower Rights. (NOV 2023)

FAR 52.204-19 Incorporation by Reference of Representations and Certifications. (DEC 2014)

FAR 52.226-8 Encouraging Contractor Policies To Ban Text Messaging While Driving. (MAY 2024)

FAR 52.227-14 Rights in Data-General. (MAY 2014) - Alternate II (DEC 2007)

(a) *Definitions.* As used in this clause-

Computer database or database means a collection of recorded information in a form capable of, and for the purpose of, being stored in, processed, and operated on by a computer. The term does not include computer software.

Computer software- (1) Means (i) Computer programs that comprise a series of instructions, rules, routines, or statements, regardless of the media in which recorded, that allow or cause a computer to perform a specific operation or series of operations; and

(ii) Recorded information comprising source code listings, design details, algorithms, processes, flow charts, formulas, and related material that would enable the computer program to be produced, created, or compiled.

(2) Does not include computer databases or computer software documentation.

Computer software documentation means owner's manuals, user's manuals, installation instructions, operating instructions, and other similar items, regardless of storage medium, that explain the capabilities of the computer software or provide instructions for using the software.

Data means recorded information, regardless of form or the media on which it may be recorded. The term includes technical data and computer software. The term does not include information incidental to contract administration, such as financial, administrative, cost or pricing, or management information.

Form, fit, and function data means data relating to items, components, or processes that are sufficient to enable physical and functional interchangeability, and data identifying source, size, configuration, mating and attachment characteristics, functional characteristics, and performance requirements. For computer software it means data identifying source, functional characteristics, and performance requirements but specifically excludes the source code, algorithms, processes, formulas, and flow charts of the software.

Limited rights means the rights of the Government in limited rights data as set forth in the Limited Rights Notice of paragraph (g)(3) if included in this clause.

Limited rights data means data, other than computer software, that embody trade secrets or are commercial or financial and confidential or privileged, to the extent that such data pertain to items, components, or processes developed at private expense, including minor modifications.

Restricted computer software means computer software developed at private expense and that is a trade secret, is commercial or financial and confidential or privileged, or is copyrighted computer software, including minor modifications of the computer software.

Restricted rights, as used in this clause, means the rights of the Government in restricted computer software, as set forth in a Restricted Rights Notice of paragraph (g) if included in this clause, or as otherwise may be provided in a collateral agreement incorporated in and made part of this contract, including minor modifications of such computer software.

Technical data, means recorded information (regardless of the form or method of the recording) of a scientific or technical nature (including computer databases and computer software documentation). This term does not include computer software or financial, administrative, cost or pricing, or management data or other information incidental to contract administration. The term includes recorded information of a scientific or technical nature that is included in computer databases. (See 41 U.S.C. 116).

Unlimited rights means the rights of the Government to use, disclose, reproduce, prepare derivative works, distribute copies to the public, and perform publicly and display publicly, in any manner and for any purpose, and to have or permit others to do so.

(b) *Allocation of rights.* (1) Except as provided in paragraph (c) of this clause, the Government shall have unlimited rights in-

- (i) Data first produced in the performance of this contract;
- (ii) Form, fit, and function data delivered under this contract;
- (iii) Data delivered under this contract (except for restricted computer software) that constitute manuals or instructional and training material for installation, operation, or routine maintenance and repair of items, components, or processes delivered or furnished for use under this contract; and
- (iv) All other data delivered under this contract unless provided otherwise for limited rights data or restricted computer software in accordance with paragraph (g) of this clause.

(2) The Contractor shall have the right to-

- (i) Assert copyright in data first produced in the performance of this contract to the extent provided in paragraph (c)(1) of this clause;

- (ii) Use, release to others, reproduce, distribute, or publish any data first produced or specifically used by the Contractor in the performance of this contract, unless provided otherwise in paragraph (d) of this clause;
- (iii) Substantiate the use of, add, or correct limited rights, restricted rights, or copyright notices and to take other appropriate action, in accordance with paragraphs (e) and (f) of this clause; and
- (iv) Protect from unauthorized disclosure and use those data that are limited rights data or restricted computer software to the extent provided in paragraph (g) of this clause.

(c) *Copyright-* (1) Data first produced in the performance of this contract. (i) Unless provided otherwise in paragraph (d) of this clause, the Contractor may, without prior approval of the Contracting Officer, assert copyright in scientific and technical articles based on or containing data first produced in the performance of this contract and published in academic, technical or professional journals, symposia proceedings, or similar works. The prior, express written permission of the Contracting Officer is required to assert copyright in all other data first produced in the performance of this contract.

(ii) When authorized to assert copyright to the data, the Contractor shall affix the applicable copyright notices of 17 U.S.C. 401 or 402, and an acknowledgment of Government sponsorship (including contract number).

(iii) For data other than computer software, the Contractor grants to the Government, and others acting on its behalf, a paid-up, nonexclusive, irrevocable, worldwide license in such copyrighted data to reproduce, prepare derivative works, distribute copies to the public, and perform publicly and display publicly by or on behalf of the Government. For computer software, the Contractor grants to the Government, and others acting on its behalf, a paid-up, nonexclusive, irrevocable, worldwide license in such copyrighted computer software to reproduce, prepare derivative works, and perform publicly and display publicly (but not to distribute copies to the public) by or on behalf of the Government.

(2) Data not first produced in the performance of this contract. The Contractor shall not, without the prior written permission of the Contracting Officer, incorporate in data delivered under this contract any data not first produced in the performance of this contract unless the Contractor-

- (i) Identifies the data; and
- (ii) Grants to the Government, or acquires on its behalf, a license of the same scope as set forth in paragraph (c)(1) of this clause or, if such data are restricted computer software, the Government shall acquire a copyright license as set forth in paragraph (g)(4) of this clause (if included in this contract) or as otherwise provided in a collateral agreement incorporated in or made part of this contract.

(3) Removal of copyright notices. The Government will not remove any authorized copyright notices placed on data pursuant to this paragraph (c), and will include such notices on all reproductions of the data.

(d) *Release, publication, and use of data.* The Contractor shall have the right to use, release to others, reproduce, distribute, or publish any data first produced or specifically used by the Contractor in the performance of this contract, except-

(1) As prohibited by Federal law or regulation (e.g., export control or national security laws or regulations);

(2) As expressly set forth in this contract; or

(3) If the Contractor receives or is given access to data necessary for the performance of this contract that contain restrictive markings, the Contractor shall treat the data in accordance with such markings unless specifically authorized otherwise in writing by the Contracting Officer.

(e) *Unauthorized marking of data.* (1) Notwithstanding any other provisions of this contract concerning inspection or acceptance, if any data delivered under this contract are marked with the notices specified in paragraph (g)(3) or (g) (4) if included in this clause, and use of the notices is not authorized by this clause, or if the data bears any other restrictive or limiting markings not authorized by this contract, the Contracting Officer may at any time either return the data to the Contractor, or cancel or ignore the markings. However, pursuant to 41 U.S.C. 4703, the following procedures shall apply prior to canceling or ignoring the markings.

(i) The Contracting Officer will make written inquiry to the Contractor affording the Contractor 60 days from receipt of the inquiry to provide written justification to substantiate the propriety of the markings;

(ii) If the Contractor fails to respond or fails to provide written justification to substantiate the propriety of the markings within the 60-day period (or a longer time approved in writing by the Contracting Officer for good cause shown), the Government shall have the right to cancel or ignore the markings at any time after said period and the data will no longer be made subject to any disclosure prohibitions.

(iii) If the Contractor provides written justification to substantiate the propriety of the markings within the period set in paragraph (e)(1)(i) of this clause, the Contracting Officer will consider such written justification and determine whether or not the markings are to be cancelled or ignored. If the Contracting Officer determines that the markings are authorized, the Contractor will be so notified in writing. If the Contracting Officer determines, with concurrence of the head of the contracting activity, that the markings are not authorized, the Contracting Officer will furnish the Contractor a written determination, which determination will become the final agency decision regarding the appropriateness of the markings unless the Contractor files suit in a court of competent jurisdiction within 90 days of receipt of the Contracting Officer's

decision. The Government will continue to abide by the markings under this paragraph (e)(1)(iii) until final resolution of the matter either by the Contracting Officer's determination becoming final (in which instance the Government will thereafter have the right to cancel or ignore the markings at any time and the data will no longer be made subject to any disclosure prohibitions), or by final disposition of the matter by court decision if suit is filed.

(2) The time limits in the procedures set forth in paragraph (e)(1) of this clause may be modified in accordance with agency regulations implementing the Freedom of Information Act (5 U.S.C. 552) if necessary to respond to a request thereunder.

(3) Except to the extent the Government's action occurs as the result of final disposition of the matter by a court of competent jurisdiction, the Contractor is not precluded by paragraph (e) of the clause from bringing a claim, in accordance with the Disputes clause of this contract, that may arise as the result of the Government removing or ignoring authorized markings on data delivered under this contract.

(f) *Omitted or incorrect markings.* (1) Data delivered to the Government without any restrictive markings shall be deemed to have been furnished with unlimited rights. The Government is not liable for the disclosure, use, or reproduction of such data.

(2) If the unmarked data has not been disclosed without restriction outside the Government, the Contractor may request, within 6 months (or a longer time approved by the Contracting Officer in writing for good cause shown) after delivery of the data, permission to have authorized notices placed on the data at the Contractor's expense. The Contracting Officer may agree to do so if the Contractor-

(i) Identifies the data to which the omitted notice is to be applied;

(ii) Demonstrates that the omission of the notice was inadvertent;

(iii) Establishes that the proposed notice is authorized; and

(iv) Acknowledges that the Government has no liability for the disclosure, use, or reproduction of any data made prior to the addition of the notice or resulting from the omission of the notice.

(3) If data has been marked with an incorrect notice, the Contracting Officer may-

(i) Permit correction of the notice at the Contractor's expense if the Contractor identifies the data and demonstrates that the correct notice is authorized; or

(ii) Correct any incorrect notices.

(g) *Protection of limited rights data and restricted computer software.* (1) The Contractor may withhold from delivery qualifying limited rights data or restricted computer software that are not data identified in paragraphs (b)(1)(i), (ii), and (iii) of this clause. As a condition to this withholding, the Contractor shall-

- (i) Identify the data being withheld; and
- (ii) Furnish form, fit, and function data instead.

(2) Limited rights data that are formatted as a computer database for delivery to the Government shall be treated as limited rights data and not restricted computer software.

(3) Notwithstanding paragraph (g)(1) of this clause, the contract may identify and specify the delivery of limited rights data, or the Contracting Officer may require by written request the delivery of limited rights data that has been withheld or would otherwise be entitled to be withheld. If delivery of that data is required, the Contractor shall affix the following "Limited Rights Notice" to the data and the Government will treat the data, subject to the provisions of paragraphs (e) and (f) of this clause, in accordance with the notice:

LIMITED RIGHTS NOTICE (DEC 2007)

(a) These data are submitted with limited rights under Government Contract No. [] (and subcontract [], if appropriate). These data may be reproduced and used by the Government with the express limitation that they will not, without written permission of the Contractor, be used for purposes of manufacture nor disclosed outside the Government; except that the Government may disclose these data outside the Government for the following purposes, if any; provided that the Government makes such disclosure subject to prohibition against further use and disclosure: [] (Agencies may list additional purposes as set forth in 27.404-2(c)(1) or if none, so state.)

(b) This notice shall be marked on any reproduction of these data, in whole or in part.

(End of notice)

(h) *Subcontracting.* The Contractor shall obtain from its subcontractors all data and rights therein necessary to fulfill the Contractor's obligations to the Government under this contract. If a subcontractor refuses to accept terms affording the Government those rights, the Contractor shall promptly notify the Contracting Officer of the refusal and shall not proceed with the subcontract award without authorization in writing from the Contracting Officer.

(i) *Relationship to patents or other rights.* Nothing contained in this clause shall imply a license to the Government under any patent or be construed as affecting the scope of any license or other right otherwise granted to the Government.

(End of clause)

FAR 52.232-1 Payments. (APR 1984)

CAR 1352.201-70 Contracting Officer's Authority. (MAR 2010)

CAR 1352.209-73 Compliance with the laws. (APR 2010)**CAR 1352.209-74 Organizational conflict of interest. (APR 2010)****CAR 1352.239-72 Security requirements for information technology resources. (APR 2010)**

(a) *Applicability.* This clause is applicable to all contracts that require contractor electronic access to Department of Commerce sensitive non-national security or national security information contained in systems, or administrative control of systems by a contractor that process or store information that directly supports the mission of the Agency.

(b) *Definitions.* For purposes of this clause, the term "Sensitive" is defined by the guidance set forth in the Computer Security Act of 1987 (Pub. L. 100-235), including the following definition of the term:

(1) Sensitive information is " * * * any information, the loss, misuse, or unauthorized access to, or modification of which could adversely affect the national interest or the conduct of Federal programs, or the privacy to which individuals are entitled under section 552a of title 5, United States Code (The Privacy Act), but which has not been specifically authorized under criteria established by an Executive Order or an Act of Congress to be kept secret in the interest of national defense or foreign policy."

(2) For purposes of this clause, the term "National Security" is defined by the guidance set forth in:

(i) The DOC IT Security Program Policy and Minimum Implementation Standards, Section 4.3.

(ii) The DOC Security Manual, Chapter 18.

(iii) Executive Order 12958, as amended, Classified National Security Information. Classified or national security information is information that has been specifically authorized to be protected from unauthorized disclosure in the interest of national defense or foreign policy under an Executive Order or Act of Congress.

(3) Information technology resources include, but are not limited to, hardware, application software, system software, and information (data). Information technology services include, but are not limited to, the management, operation (including input, processing, transmission, and output), maintenance, programming, and system administration of computer systems, networks, and telecommunications systems.

(c) The contractor shall be responsible for implementing sufficient Information Technology security, to reasonably prevent the compromise of DOC IT resources for all of the contractor's systems that are interconnected with a DOC network or DOC systems that are operated by the contractor.

(d) All contractor personnel performing under this contract and contractor equipment used to process or store DOC data, or to connect to DOC networks, must comply with the requirements

contained in the *DOC Information Technology Management Handbook* (see DOC, Office of the Chief Information Officer Web site), or equivalent/more specific agency or operating unit counsel guidance as specified immediately hereafter [insert agency or operating unit counsel specific guidance, if applicable].

(e) Contractor personnel requiring a user account for access to systems operated by the contractor for DOC or interconnected to a DOC network to perform contract services shall be screened at an appropriate level in accordance with Commerce Acquisition Manual 1337.70, *Security Processing Requirements for Service Contracts*.

(f) Within 5 days after contract award, the contractor shall certify in writing to the COR that its employees, in performance of the contract, have completed initial IT security orientation training in DOC IT Security policies, procedures, computer ethics, and best practices, in accordance with *DOC IT Security Program Policy*, chapter 15, section 15.3. The COR will inform the contractor of any other available DOC training resources. Annually thereafter the contractor shall certify in writing to the COR that its employees, in performance of the contract, have completed annual refresher training as required by section 15.4 of the *DOC IT Security Program Policy*.

(g) Within 5 days of contract award, the contractor shall provide the COR with signed acknowledgement of the provisions as contained in Commerce Acquisition Regulation (CAR), 1352.209-72, *Restrictions Against Disclosures*.

(h) The contractor shall afford DOC, including the Office of Inspector General, access to the contractor's and subcontractor's facilities, installations, operations, documentation, databases, and personnel used in performance of the contract. Access shall be provided to the extent required to carry out a program of IT inspection, investigation, and audit to safeguard against threats and hazards to the integrity, availability, and confidentiality of DOC data or to the function of computer systems operated on behalf of DOC, and to preserve evidence of computer crime.

(i) For all contractor-owned systems for which performance of the contract requires interconnection with a DOC network on which DOC data will be stored or processed, the contractor shall provide, implement, and maintain a System Accreditation Package in accordance with the *DOC IT Security Program Policy*. Specifically, the contractor shall:

(1) Within 14 days after contract award, submit for DOC approval a System Certification Work Plan, including project management information (at a minimum the tasks, resources, and milestones) for the certification effort, in accordance with *DOC IT Security Program Policy* and [Insert agency or operating unit counsel specific guidance, if applicable]. The Certification Work Plan, approved by the COR, in consultation with the DOC IT Security Officer, or Agency/operating unit counsel IT Security Manager/Officer, shall be incorporated as part of the contract and used by the COR to monitor performance of certification activities by the contractor of the system that will process DOC data or connect to DOC networks. Failure to submit and receive approval of the Certification Work Plan may result in termination of the contract.

(2) Upon approval, follow the work plan schedule to complete system certification activities in accordance with DOC *IT Security Program Policy* Section 6.2, and provide the COR with the completed System Security Plan and Certification Documentation Package portions of the System Accreditation Package for approval and system accreditation by an appointed DOC official.

(3) Upon receipt of the Security Assessment Report and Authorizing Official's written accreditation decision from the COR, maintain the approved level of system security as documented in the Security Accreditation Package, and assist the COR in annual assessments of control effectiveness in accordance with DOC *IT Security Program Policy*, Section 6.3.1.1.

(j) The contractor shall incorporate this clause in all subcontracts that meet the conditions in paragraph (a) of this clause.

(End of clause)

CAR 1352.246-70 Place of acceptance. (APR 2010)

(a) The Contracting Officer or the duly authorized representative will accept supplies and services to be provided under this contract.

(b) The place of acceptance will be:

Data shall be submitted as set forth in Attachment 1, "Statement of Work."

(End of clause)

RFO 52.204-18 Reserved

RFO 52.204-25 Reserved

RFO 52.222-50 COMBATING TRAFFICKING IN PERSONS. (OCT 2025) (Deviation JAN 2026)

RFO 52.243-1 CHANGES-FIXED-PRICE. (AUG 1987) (Deviation JUN 2025)

RFO 52.244-6 SUBCONTRACTS FOR COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES. (OCT 2025) (Deviation JAN 2026)

001 Additional Clauses

Supply Chain Risk Assessment (SCRA)

NOAA's Office of the Chief Information Officer (CIO) determined this acquisition is subject to a "Supply Chain Risk Assessment" (SCRA) IAW Dept. of Commerce (DOC) Procurement Memorandum (PM) PM 2015-08 Supply Chain Risk Assessment (SCRA) Requirements for the Acquisition of Moderate-Impact and High-Impact Information Systems Section 5 that provides Department-wide direction to DOC Contracting Officers and Purchase Card Holders to implement the supply chain risk assessment requirements for the acquisition of new FIPS-199 moderate-impact and high-impact information systems set forth in Section 515 of the Consolidated and Further Continuing Appropriations Act, 2015, and conforms with DOC's Commerce Information Technology Requirement (CITR) CITR0231 Pre-

Acquisition Supply Chain Risk Management Assessment requirements. A SCRA is the process by which DOC's Office of Security (OSY) conducts a review of the proposed information system (including equipment and/or software that make up the information system) for risk of cyberespionage or sabotage and an analysis of the presumptive awardee(s) against available and relevant threat information in order to determine whether award to the presumptive awardee(s) is in the national interest of the United States. Therefore the Government has included the following required Section H terms and conditions in the solicitation as well as will include in the anticipated resulting contract.

Notice of Supply Chain Risk Assessment (Sep 2015)

The Department of Commerce will review the supply chain risk and conduct a risk assessment for this acquisition. Offerors and awardees shall provide any information the Department deems necessary to facilitate its Supply Chain Risk Assessment (SCRA) including, but not limited to, the data requested by the Supply Chain Risk Assessment Information (Sep 2015) questionnaire included in this solicitation (Sect. S.2, SCRA Questionnaire). By submission of its proposal, the Offeror acknowledges the Department may reject any offer without recourse or explanation if the Department determines the proposal presents an unacceptable risk.

(End)

Non Destructive and Destructive Testing (Sep 2015)

The Department of Commerce may engage in non-destructive and/or destructive testing of any information system, equipment and software to determine whether it will negatively affect the security or performance of a Department of Commerce information system.

(End)

Supply Chain Risk Assessment Information (Sep 2015)

The offeror/contractor shall submit the following information with its proposal or after award at the Government's request:

- (A) 1. Its identity, including that of each parent and/or subsidiary corporate entities.
2. The identity of any proposed subcontractors (including but not limited to suppliers, distributors, and manufacturers) involved in its supply chain.
3. The degree of any foreign ownership in or control of the entities identified under (A)(1) or (2).
4. The names and dates of birth of the offeror's/contractor's corporate officers identified under (A)(1) or (2), including this information for subcontractors (including but not limited to suppliers, distributors, and manufacturers).
5. Whether the Offeror/Contractor and subcontractors (including but not limited to suppliers, distributors, and manufacturers) maintain a:
 - i. Formal security program that includes personnel security;
 - ii. Information security program;
 - iii. Physical security program;
 - iv. Cyber security program; and
 - v. Supply chain risk management program.
6. The name and locations of each facility where any information system, IT hardware and/or software to be delivered under the contract or task or order was designed, manufactured, packaged and stored prior to distribution.
7. Whether a separation of duties exists during the development process of any information system, IT

hardware and/or software to be delivered under the contract or task order.

8. The means and method for delivering any information system, IT hardware and/or software to be delivered under the contract or task order, including the name(s) of any entity responsible for transport or storage. This information should address whether the information system, IT hardware and/or software will be direct-shipped to the Department.

9. Whether the proposed information system, IT hardware and/or software includes a service agreement required by the contract or task order, and, if so, the identity of the contractor/subcontractor(s) who will provide this follow-on service, and how the services will be delivered/deployed (e.g., via on-site service? Remotely via internet?)

10. The identity of the entity that will provide disposal services of any information system, IT hardware and/or software required by the contract or task order.

(B) The Government may request and the offeror/contractor shall provide additional information if necessary.

(C) The offeror/contractor shall include this language in all subcontracts (including but not limited to those with suppliers, distributors, and manufacturers) involving the development and delivery of an IT system, IT hardware and/or software under this acquisition.

(D) Supply Chain Risk Assessment Information shall be marked as contractor bid proposal information and source selection information in accordance with FAR 3.104-4 and securely transmitted to the contracting officer.

(E) By submission of its offer and/or acceptance of this contract or contract modification, the offeror/contractor represents this information is accurate and complete. Offerors and contractors shall have a continuing obligation to amend any information that changes during the evaluation period prior to award and/or during the period of performance of the contract or task order(s).

(End)

Mitigating Supply Chain Risk (Oct 2023)

The Department of Commerce (DOC) utilizes a Supply Chain Risk Management (SCRM) Program to identify, assess, and monitor supply chain risks of critical vendors. The Government may use any information, public and non-public, including all-source intelligence for its analysis. The Contractor agrees that the Government may, at its own discretion, perform audits of supply chain risk processes or events consistent with other terms in the contract regarding access to records and audits. An onsite assessment may be required. Through the information obtained from a SCRM program, DOC may assess vendors and products through multiple risk lenses such as national security, cybersecurity, compliance, and finance. If supply chain risks are identified and corrective action becomes necessary, mutually agreeable corrective actions will be sought based upon specific identified risks. Failure to resolve any identified risk may result in contract termination.

(End)

Evaluation of Supply Chain Risk Assessment Information (Sept 2015)

The Department will evaluate the information provided to assess the supply chain risk associated with the offeror's proposal and to determine if the award is in the national interest of the United States.

(End)

Novation Agreement for Acquiring Certain Information Technology (Sep 2015)

(1) "Novation agreement" means a legal instrument--(a) Executed by the--(i) Contractor (transferor); (ii) Successor in interest (transferee); and (iii) Government; and (b) By which, among other things, the transferor guarantees performance of the contract, the transferee assumes all obligations under the contract, and the Government recognizes the transfer of the contract and related assets. (FAR 2.101 - Definitions).

(2) The Department may in its interest recognize a successor in interest. The offeror and or subsequent awardee(s) agree as a condition of this contract, that any novation considered and recognized by the Department shall be subject to SCRA requirements, including "Notice of Supply Chain Risk Assessment (Sept 2015)," "Non Destructive and Destructive Testing (Sept 2015)," "Supply Chain Risk Assessment Information (Sept 2015)," and "Evaluation of Supply Chain Risk Assessment Information (Sept 2015)." (End)

CAR 1352.201-72 Contracting Officer's Representative (COR). (APR 2010)

(a) TBD is hereby designated as the Contracting Officer's Representative (COR). The COR may be changed at any time by the Government without prior notice to the contractor by a unilateral modification to the contract. The COR is located at:

TBD

Phone Number: []

E-mail: []

(b) The responsibilities and limitations of the COR are as follows:

(1) The COR is responsible for the technical aspects of the contract and serves as technical liaison with the contractor. The COR is also responsible for the final inspection and acceptance of all deliverables and such other responsibilities as may be specified in the contract.

(2) The COR is not authorized to make any commitments or otherwise obligate the Government or authorize any changes which affect the contract price, terms or conditions. Any contractor request for changes shall be referred to the Contracting Officer directly or through the COR. No such changes shall be made without the express written prior authorization of the Contracting Officer. The Contracting Officer may designate assistant or alternate COR(s) to act for the COR by naming such assistant/alternate(s) in writing and transmitting a copy of such designation to the contractor.

(End of clause)

CAR 1352.270-70 Period of performance. (APR 2010)

(a) The base period of performance of this contract is from June 1, 2026 through April 1, 2027.

(End of clause)

NOAA Acquisition Manual 1330-52.203-71 NOTICE OF POST-GOVERNMENT EMPLOYMENT RESTRICTIONS (OCT 2015)

By submission of an offer in response to a NOAA solicitation or acceptance of a contract, the contractor acknowledges the restriction on current NOAA employees regarding contact with offerors regarding prospective employment and the corresponding obligations for contractors who engage them. The contractor further acknowledges that it has provided notice to former NOAA employees who will provide service to NOAA under the contract of post-Government employment restrictions that apply to them. Such restrictions include, but are not limited to, those set forth in:

- (a) 41 U.S.C. § 2103 regarding contacts between a Federal employee working on a procurement and an offeror about prospective employment;
- (b) 18 U.S.C. § 207 regarding the restrictions on former Federal employees having contact with a Federal agency on behalf of another person or entity concerning a specific party matter with which the former employee was involved as a Federal employee or for which the former Federal employee had official responsibility;
- (c) 18 U.S.C. § 207 regarding the restrictions on former senior employees and senior political employees from having contact with his former Federal agency on behalf of another person or entity concerning any official matter; and
- (d) 41 U.S.C. § 2104 regarding the restrictions on a former Federal employee involved in an acquisition over \$10,000,000 from accepting compensation from a contractor.

(End of solicitation and contract language)

NOAA Acquisition Manual 1330-52.222-70 NOAA SEXUAL ASSAULT AND SEXUAL HARASSMENT PREVENTION AND RESPONSE POLICY (MAY 2018)

In accordance with NOAA Administrative Order (NAO) 202-1106, NOAA Sexual Assault and Sexual Harassment Prevention and Response Policy, it is the policy of NOAA to maintain a work environment free from sexual assault and sexual harassment. NOAA prohibits sexual assault and sexual harassment by or of any employee, supervisor, manager, contractor, vendor, affiliate, or other individual with whom NOAA employees come into contact by the virtue of their work for NOAA.

(a) Definitions.

Contractor Employees - The term “contractor employees,” as used in this solicitation and contract language, refers to employees of the prime contractor or its subcontractors, affiliates, consultants, or team members.

Sexual Assault - The term sexual assault, as used in this solicitation and contract language, means any conduct proscribed by state or federal sexual abuse laws, including, but not limited to, those defined in chapter 109A of title 18 of the U.S. Code (sexual abuse), and assaults committed both by offenders who are strangers to the victim and by offenders who are known or related by blood or marriage to the victim.

Sexual Harassment - As defined by the Equal Employment Opportunity Commission, sexual harassment is a form of sex discrimination that violates Title VII of the Civil Rights Act of 1964. It includes unwelcome sexual advances, requests for sexual favors, and other verbal, non-verbal, or physical conduct of a sexual nature when any of the following are true:

- Submission to such conduct is made either explicitly or implicitly as a term or condition of an individual's employment;
- Submission to or rejection of such conduct by an individual is used as the basis for employment decisions affecting such individual;
- The conduct unreasonably interferes with an individual's work performance or creates an intimidating, hostile, or offensive working environment.

The main characteristics of sexual harassment are that the harasser's conduct is targeted against the recipient's sex, gender identity, or sexual orientation, and is unwelcome to the recipient. It may include, but is not limited to: offensive jokes, slurs, epithets or name calling, undue attention, physical assaults or threats, unwelcome touching or contact, intimidation, ridicule or mockery, insults or put-downs, constant or unwelcome questions about an individual's identity, and offensive objects or pictures.

(b) Requirements.

1. It is the responsibility of the contractor to ensure that contractor employees maintain the highest degree of conduct and standards in performance of the contract. In support of this, NOAA urges its contractors to develop and enforce comprehensive company policy addressing sexual assault and sexual harassment.
2. The contractor shall include wording substantially the same as this solicitation and contract language in every subcontract so that it is binding upon each subcontractor.
3. If a contractor employee observes or is the object of sexual assault or sexual harassment, he or she is highly encouraged to report the matter, as soon as possible, to their immediate supervisor, the COR, subset of the COR (e.g. Task Manager or Assistant COR), or contracting officer (CO) if a COR is not assigned to the contract. The contract employee may also contact the NOAA Civil Rights Office to obtain guidance on reporting instances of sexual assault or sexual harassment. If deemed necessary, the contractor employee may also report such instances to local law enforcement. In the case where the incident occurs while performing at a remote location, such as at sea or in the field (at a field camp or other isolated location) where the above referenced individuals are unavailable, the contractor employee should follow the reporting procedure set forth in NAO 202-1106, Section 6.07, Reporting from Remote Locations.
4. Swift reporting allows NOAA and the contractor to take the appropriate measures to ensure that offensive behavior stops and the complainants' needs are addressed.
5. The COR (if assigned), CO, and contractor, where applicable, will work together to ensure appropriate action is taken in accordance with applicable laws and regulations, contract terms and conditions, and the contractor's written policy (where applicable).

6. The contractor shall provide all contractor employees assigned to perform under this contract with mandatory sexual assault and sexual harassment prevention and response training in compliance with the requirements of NAO 202-1106, Section 5, Prevention Training and Awareness, as part of their initial in-processing and on an annual basis thereafter. The initial training shall be completed within [] business days (30 unless a different number is inserted) of contract award or the date a contractor employee is assigned to perform under the contract, as applicable.

Evidence of initial training by name and date completed for each contractor employee, shall be submitted to the COR or contracting officer (if no COR assigned) within 10 business days of completion.

Evidence of annual training by name and date completed for each contractor employee shall be submitted to the COR or contracting officer (if no COR assigned) no later than March 1st of each calendar year of contract performance.

7. The mandatory sexual assault and sexual harassment training provided by the contractor shall include the required elements set forth by NOAA's Workplace Violence Program Manager. A link to the website including the required elements of the training is provided at <https://www.noaa.gov/organization/acquisition-grants/noaa-workplace-harassment-training-for-contractors-and-financial>. The website will also provide training materials and resources to assist the contractor in conducting the training. The contractor may provide training that solely addresses the NOAA required elements or may supplement existing company sexual assault and sexual harassment training in a manner that ensures all of the elements are adequately addressed.

8. The required elements of the training and resources available to the contractor for the training may be updated by NOAA periodically. The contractor is responsible for monitoring the website and incorporating any changes to the NOAA required elements into the contractor provided training.

9. NOAA's Workplace Violence Program Manager, COR, or CO may periodically review the contractor's training outline to ensure all required elements are included and, if necessary, any appropriate adjustments are made to the training by the contractor.

10. Contractor employees performing on assignments in a remote location, such as at a field camp or other isolated locations, are subject to receiving the same briefing on the parameters of the order provided to NOAA employees as set forth in Section 6 of NAO 202-1106.

11. The contractor shall provide a copy of this solicitation and contract language and NAO 202-1106 to contractor employees.

(c) Sexual Assault/Sexual Harassment (SASH) Helpline.

For NOAA employees, affiliates, and contractors who have experienced sexual assault or sexual harassment, NOAA has established the NOAA Sexual Assault/Sexual Harassment (SASH) helpline. This helpline is designed to provide crisis intervention, referrals, and emotional support to those who are victims and/or survivors of sexual harassment or sexual assault within the workplace. Contractor employees may use the helpline to receive live, confidential, one-on-one support in an occurrence of sexual harassment or assault by a Federal Government employee.

All services are anonymous, secure, and available worldwide, 24 hours a day, seven days a week. The NOAA SASH helpline is accessible through a variety of channels, including:

- Phone: 1-866-288-6558
- Website & Online Chat: <https://www.noaasashhelpline.org/>
- Mobile App: NOAA SASH Helpline (available via iOS and Android App Stores)
- Text: (202) 335-0265

(d) Confidentiality.

Any party receiving information from the filing of a complaint alleging sexual assault or sexual harassment, or while performing an investigation into such a complaint, shall keep the information confidential. "Confidentiality" means that the information shall only be shared with others who have a need to know the information to conduct their official duties.

(e) Remedies.

In addition to other remedies available to the Government, contractor employee violations of Federal requirements (e.g., law, statutes, executive orders, code, rules, regulations) applicable to sexual assault and sexual harassment and/or failure to complete the mandatory training set forth in this solicitation and contract language, may result in:

1. Requiring the contractor to remove a contractor employee or employees from the performance of the contract;
2. Requiring the contractor to terminate a subcontract;
3. Suspension of contract payments until the Contractor has taken appropriate remedial action;
4. Termination of the contract for default or cause, in accordance with the termination clause of this contract;
5. Suspension or debarment; or
6. Other appropriate action.

(End of solicitation and contract language)

NOAA Acquisition Manual 1330-52.232-71 ELECTRONIC SUBMISSION OF PAYMENT REQUESTS (FEB 2023)

The Contractor must submit payment requests electronically through the U.S. Department of the Treasury's Invoice Processing Platform System (IPP). The Contractor must use the IPP website to register, access, and submit payment requests. The IPP website address is <https://www.ipp.gov>.

"Payment request" means any request for contract financing payment or invoice payment to the Contractor. To be considered proper, invoices must be prepared in accordance with, and contain all elements specified in, the contract payment clause (e.g., FAR 52.212-4(g), FAR 52.232-25(a)(3), FAR 52.232-26(a)(2), FAR 52.232-27(a)(2)).

The Contractor must include the following documents as attachments to payment requests submitted through the IPP: [Contracting Officer list required invoice attachment(s); none if left blank].

If the Contractor is unable to comply with the requirement to submit payment requests through the IPP due to a threat to national security; a matter of unusual or compelling urgency; or because the political, financial, or communications infrastructure of a foreign country does not support access to the IPP, the Contractor must request an exception in writing. Contact the Contracting Officer for more information about requesting an exception.

(End of solicitation and contract language)

NOAA Acquisition Manual 1330-52.242-70 SUBMITTAL OF INVOICES (FEB 2011)

The contractor shall prepare and submit an invoice to the COR for approval [with a copy to the contracting officer for information]. All invoices shall be submitted by the 10th day of the subsequent month.

To constitute a proper invoice, the contractor's invoice shall be prepared in accordance with, and contain all elements specified in the paragraph titled, "Contractor's Invoice," of the applicable prompt payment provision of the contract (e.g., FAR 52.232-25, Prompt Payment; FAR 52.232-26, Prompt Payment for Fixed-Price Architect Engineer Contracts; or FAR 52.232-27, Prompt Payment for Construction Contracts). For contracts and orders for commercial items and services, paragraph (g) of FAR 52.212-4, titled, "Invoices," applies.

If the invoice does not comply with the applicable prompt payment provision of the contract, the COR will return it to the contractor within seven days after the date the designated office received the invoice along with a statement as to the reasons why it is not a proper invoice.

(End of solicitation and contract language)

NOAA Acquisition Manual 1330-52.243-70 REQUESTS FOR EQUITABLE ADJUSTMENT (OCT 2017)

(a) The amount of any request for equitable adjustment to contract terms shall accurately reflect the contract adjustment for which the contractor believes the Government is liable. The request shall include only costs for performing the change. All indirect costs included in the request shall be properly allocable to the change in accordance with applicable acquisition regulations.

(b) Any request for equitable adjustment to contract terms that exceeds the simplified acquisition threshold shall bear, at the time of submission, the following certificate executed by an individual authorized to certify the request on behalf of the contractor:

I certify that the request is made in good faith, and that the supporting data are accurate and complete to the best of my knowledge and belief.

(Official's Name)

(Title)

(c) The certification in paragraph (b) of this solicitation and contract language requires full disclosure of all relevant facts, including:

1. Certified cost or pricing data, if required, in accordance with subsection 15.403-4 of the Federal Acquisition Regulation (FAR); and
2. Data other than certified cost or pricing data, in accordance with subsection 15.403-3 of the FAR, including actual cost data and data to support any estimated costs, even if certified cost or pricing data are not required.

(d) The certification requirement in paragraph (b) of this solicitation and contract language does not apply to:

1. Requests for routine contract payments; for example, requests for payment for accepted supplies and services, routine vouchers under a cost-reimbursement type contract, or progress payment invoices; or
2. Final adjustments under an incentive provision of the contract.

(End of solicitation and contract language)

RFO 52.212-4 TERMS AND CONDITIONS-COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES. (NOV 2023) (Deviation JAN 2026)

(a) Definitions. The clause at Federal Acquisition Regulation (FAR) 52.202-1, Definitions, is incorporated by reference.

(b) *Inspection/Acceptance.* The Contractor shall only tender for acceptance those items that conform to the requirements of this contract. The Government reserves the right to inspect or test any supplies or services that have been tendered for acceptance. The Government may require repair or replacement of nonconforming supplies or reperformance of nonconforming services at no increase in contract price. If repair/replacement or reperformance will not correct the defects or is not possible, the Government may seek an equitable price reduction or adequate consideration for acceptance of nonconforming supplies or services. The Government must exercise its post acceptance rights-

(1) Within a reasonable time after the defect was discovered or should have been discovered; and

(2) Before any substantial change occurs in the condition of the item, unless the change is due to the defect in the item.

(c) *Assignment.* The Contractor or its assignee may assign its rights to receive payment due as a result of performance of this contract to a bank, trust company, or other financing institution, including any Federal lending agency in accordance with the Assignment of Claims Act (31 U.S.C. 3727). However, when a third party makes payment (*e.g.*, use of the Governmentwide commercial purchase card), the Contractor may not assign its rights to receive payment under this contract.

(d) *Changes.* Changes in the terms and conditions of this contract may be made only by written agreement of the parties.

(e) *Disputes.* This contract is subject to 41 U.S.C. chapter 71, Contract Disputes. Failure of the parties to this contract to reach agreement on any request for equitable adjustment, claim, appeal, or action arising under or relating to this contract shall be a dispute to be resolved in accordance with the clause FAR 52.233-1, Disputes, which is incorporated in this contract by reference. The Contractor shall proceed diligently with performance of this contract, pending final resolution of any dispute arising under the contract.

(f) *Excusable delays.* The Contractor shall be liable for default unless nonperformance is caused by an occurrence beyond the reasonable control of the Contractor and without its fault or negligence. Examples of occurrences include acts of God or the public enemy, acts of the Government in either its sovereign or contractual capacity, fires, floods, epidemics, quarantine restrictions, strikes, unusually severe weather, and delays of common carriers. When an excusable delay occurs, the Contractor shall-

(1) Notify the Contracting Officer in writing as soon as possible;

(2) Remedy the delay as quickly as possible; and

(3) Notify the Contracting Officer when the occurrence is over.

(g) *Invoice.* The Government will handle invoices according to the Prompt Payment Act (31 U.S.C. 3903) and 5 CFR part 1315. The Contractor shall submit invoices to the address designated in the contract to receive invoices. An invoice must include the information required by 5 CFR part 1315.9(b).

(h) *Patent indemnity.* The Contractor shall indemnify the Government and its officers, employees, and agents against liability, including costs, for actual or alleged direct or contributory infringement of, or inducement to infringe, any United States or foreign patent, trademark, or copyright, arising out of the performance of this contract, provided the Contractor is reasonably notified of such claims and proceedings.

(i) *Payment-*

(1) *Items accepted.* Payment shall be made for items accepted by the Government that have been delivered to the delivery destinations set forth in this contract.

(2) *Prompt payment.* The Government will make payment in accordance with the Prompt Payment Act (31 U.S.C. 3903) and prompt payment regulations at 5 CFR part 1315.

(3) *Discount.* In connection with any discount offered for early payment, time shall be computed from the date of the invoice. For the purpose of computing the discount earned, payment shall be considered to have been made on the date that appears on the payment check or the specified payment date if an electronic funds transfer payment is made.

(4) *Overpayments.* If the Contractor becomes aware of a duplicate contract financing or invoice payment or that the Government has otherwise overpaid on a contract financing or invoice payment, the Contractor shall-

(i) Remit the overpayment amount to the payment office cited in the contract along with a description of the overpayment including the-

(A) Circumstances of the overpayment (*e.g.*, duplicate payment, erroneous payment, liquidation errors, date(s) of overpayment);

(B) Affected contract number and delivery order number, if applicable;

(C) Affected line item or subline item, if applicable;

(D) Contractor point of contact; and

(ii) Provide a copy of the remittance and supporting documentation to the Contracting Officer.

(5) *Interest.*(i) All amounts that become payable by the Contractor to the Government under this contract shall bear simple interest from the date due until paid unless paid within 30 days of becoming due. The interest rate shall be the interest rate established by the Secretary of the Treasury as provided in 41 U.S.C. 7109, which is applicable to the period in which the amount becomes due, as provided in (i)(6)(v) of this clause, and then at the rate applicable for each six-month period as fixed by the Secretary until the amount is paid.

(ii) The Government may issue a demand for payment to the Contractor upon finding a debt is due under the contract.

(iii) *Final decisions.* The Contracting Officer will issue a final decision as required by FAR part 33 if-

(A) The Contracting Officer and the Contractor are unable to reach agreement on the existence or amount of a debt within 30 days;

(B) The Contractor fails to liquidate a debt previously demanded by the Contracting Officer within the timeline specified in the demand for payment unless the amounts were not repaid because the Contractor has requested an installment payment agreement; or

(C) The Contractor requests a deferment of collection on a debt previously demanded by the Contracting Officer (see FAR part 32).

(iv) If a demand for payment was previously issued for the debt, the demand for payment included in the final decision shall identify the same due date as the original demand for payment.

(v) Amounts shall be due at the earliest of the following dates:

(A) The date fixed under this contract.

(B) The date of the first written demand for payment, including any demand for payment resulting from a termination for cause.

(vi) The interest charge shall be computed for the actual number of calendar days involved beginning on the due date and ending on-

(A) The date on which the designated office receives payment from the Contractor;

(B) The date of issuance of a Government check to the Contractor from which an amount otherwise payable has been withheld as a credit against the contract debt; or

(C) The date on which an amount withheld and applied to the contract debt would otherwise have become payable to the Contractor.

(vii) The interest charge made under this clause may be reduced under the procedures for interest credits prescribed in FAR part 32 in effect on the date of this contract.

(j) *Risk of loss.* Unless the contract specifically provides otherwise, risk of loss or damage to the supplies provided under this contract shall remain with the Contractor until, and shall pass to the Government upon-

(1) Delivery of the supplies to a carrier, if transportation is f.o.b. origin; or

(2) Delivery of the supplies to the Government at the destination specified in the contract, if transportation is f.o.b. destination.

(k) *Taxes.* The contract price includes all applicable Federal, State, and local taxes and duties.

(l) *Termination for the Government's convenience.* The Government reserves the right to terminate this contract, or any part hereof, for its sole convenience. In the event of such termination, the Contractor shall immediately stop all work and shall immediately cause any and all of its suppliers and subcontractors to cease work. Subject to the terms of this contract, the Contractor shall be paid a percentage of the contract price reflecting the percentage of the work performed prior to the notice of termination, plus reasonable charges the Contractor can demonstrate to the satisfaction of the Government using its standard record keeping system, have resulted from the termination. The Contractor shall not be required to comply with the cost accounting standards or contract cost principles for this purpose. This paragraph does not give the Government any right to audit the Contractor's records. The Contractor shall not be paid for any work performed or costs incurred which reasonably could have been avoided.

(m) *Termination for cause.* The Government may terminate this contract, or any part hereof, for cause in the event of any default by the Contractor, or if the Contractor fails to comply with any contract terms and conditions, or fails to provide the Government, upon request, with adequate assurances of future performance. The Government will send a cure notice to the Contractor,

unless the reason for the termination is late delivery. In the event of termination for cause, the Government shall not be liable to the Contractor for any amount for supplies or services not accepted, and the Contractor shall be liable to the Government for any and all rights and remedies provided by law. If it is determined that the Government improperly terminated this contract for default, such termination shall be deemed a termination for convenience.

(n) *Title*. Unless specified elsewhere in this contract, title to items furnished under this contract shall pass to the Government upon acceptance, regardless of when or where the Government takes physical possession.

(o) *Warranty*. The Contractor warrants and implies that the items delivered under this contract are merchantable and fit for use for the particular purpose described in this contract.

(p) *Limitation of liability*. Except as otherwise provided by an express warranty, the Contractor will not be liable to the Government for consequential damages resulting from any defect or deficiencies in accepted items.

(q) *Compliance with laws unique to Government contracts*. The Contractor agrees to comply with 31 U.S.C. 1352 relating to limitations on the use of appropriated funds to influence certain Federal contracts; 40 U.S.C. chapter 37, Contract Work Hours and Safety Standards; 41 U.S.C. chapter 87, Kickbacks; 49 U.S.C. 40118, Government-financed air transportation; and 41 U.S.C. chapter 21 relating to procurement integrity.

(r) *Order of precedence*. Any inconsistencies in this solicitation or contract shall be resolved by giving precedence in the following order:

- (1) The schedule of supplies/services;
- (2) The Disputes, Payments, Invoice, Compliance with Laws Unique to Government Contracts, and Unauthorized Obligations paragraphs of this clause;
- (3) Other contract clauses incorporated in the solicitation or contract;
- (4) Addenda to this solicitation or contract;
- (5) Solicitation provisions incorporated in the solicitation;
- (6) Other paragraphs of this clause;
- (7) Other documents, exhibits, and attachments; and
- (8) The specification.

(s) *Unauthorized obligations*.

- (1) Except as stated in paragraph (s)(2) of this clause, when any supply or service acquired under this contract is subject to any End User License Agreement (EULA), Terms of Service (TOS), or similar legal instrument or agreement, that includes any clause requiring the Government to indemnify the Contractor or any person or entity for

damages, costs, fees, or any other loss or liability that would create an Anti-Deficiency Act violation (31 U.S.C. 1341), the following shall govern:

(i) Any such clause is unenforceable against the Government.

(ii) Neither the Government nor any Government-authorized end user shall be deemed to have agreed to such clause by virtue of it appearing in the EULA, TOS, or similar legal instrument or agreement. If the EULA, TOS, or similar legal instrument or agreement is invoked through an "I agree" click box or other comparable mechanism (e.g., "click-wrap" or "browse-wrap" agreements), execution does not bind the Government or any Government authorized end user to such clause.

(iii) Any such clause is deemed to be stricken from the EULA, TOS, or similar legal instrument or agreement.

(2) Paragraph (s)(1) of this clause does not apply to indemnification by the Government that is expressly authorized by statute and specifically authorized under applicable agency regulations and procedures.

(t) *Comptroller General examination of record.* This paragraph applies if this contract was awarded using other than sealed bid procedures and is in excess of the simplified acquisition threshold on the date of award of this contract.

(1) The Comptroller General of the United States, or an authorized representative of the Comptroller General, shall have access to and right to examine any of the Contractor's directly pertinent records involving transactions related to this contract.

(2) The Contractor shall make available at its offices, at all reasonable times, the records, materials, and other evidence for examination, audit, or reproduction, until 3 years after final payment under this contract or for any shorter period specified in FAR part 4, longer period required by statute, or periods specified in other clauses of this contract. If this contract is completely or partially terminated, the records relating to the work terminated shall be made available for 3 years after any resulting final termination settlement. Records relating to appeals under the disputes clause or to litigation or the settlement of claims arising under or relating to this contract shall be made available until such appeals, litigation, or claims are finally resolved.

(3) As used in this clause, records include books, documents, accounting procedures and practices, and other data, regardless of type and regardless of form. This clause does not require the Contractor to create or maintain any record that the Contractor does not maintain in the ordinary course of business or pursuant to a provision of law.

(u) *Incorporation by reference.* The Contractor's representations and certifications, including those completed electronically via the System for Award Management (SAM), are incorporated by reference into the contract.

(End of clause)

Section 4 - SOLICITATION PROVISIONS (INSTRUCTIONS TO OFFERORS)

CAR 1352.233-71 GAO and Court of Federal Claims protests. (APR 2010)

RFO 52.233-3 PROTEST AFTER AWARD. (AUG 1996) (Deviation JAN 2026)

002 Addendum to 52.212-1

To be considered, firms must furnish detailed information concerning their capability to provide the required supplies. Such information shall include (at a minimum) the company name, telephone number, address, Unique Entity Identifier (UEI) number, email address, a price proposal, a business proposal, and a technical proposal demonstrating the firm's capability to meet the specified requirements.

Questions on this solicitation must be submitted to Cherron E. Bennett-Pettus at cherron.bennett-pettus@noaa.gov and Suzanna Espinoza at suzanna.espinoza@noaa.gov no later than **2:00 PM Eastern Time on April 20, 2026**. Answers to any questions will be provided to all potential offerors via amendment to the solicitation as soon as practicable.

This solicitation does not commit the Government to pay any cost for the preparation and submission of a proposal in response to this RFP.

Proposals shall comply with the requirements of FAR 52.212-1 (Deviation RFO JAN 2026), which is hereby incorporated by reference, and the following addenda:

RFO 52.212-1 Addenda-Additional Instructions to Offerors—Commercial Products and Commercial Services (SEP 2023) (Deviation RFO JAN 2026)

A. Each Contractor's proposal shall be organized in three volumes: Business, Technical, and Price.

B. Format and Submission of Proposals:

1. Business Volume:

- (a) The Business Volume shall be submitted electronically, in Microsoft Word or searchable Adobe PDF.
- (b) The Business Volume consists of the actual offer to enter into a contract to perform the desired work. It shall include the required representations, certifications, acknowledgments, identification of technical data to be withheld, and any other required administrative information. The following documentation shall be included: an acceptance period for proposals (no shorter than 90 days) and an authorized negotiator. There is no page limit to the Business Volume.

2. Technical Volume:

- (a) The Technical Volume shall be submitted electronically, in Microsoft Word or searchable Adobe PDF.
- (b) The Technical Volume shall not exceed 20 total single-spaced pages with one-inch margins, using Times New Roman size 12 font. A 10-point font may be used for charts, tables, and graphics. Any pages in excess of the applicable page limit will be disregarded and will not be included in the evaluation. Failure of the Offeror to comply with the page limitations shall not constitute grounds for a protest.

If included in an offeror's proposal, the following items are excluded from the page count, font, margin,

and spacing requirements:

- Cover Page
- Cover letter (maximum of two (2) pages)
- Table of Contents, List of Tables and List of Figures
- Abbreviations and Acronyms (if applicable)
- Schematic, renderings, and other graphical information that supports the proposal

(c) The Technical Volume shall describe the Offeror's ability to provide data that meets all specifications required by the Statement of Work (SOW) at the time of proposal submission. Merely restating the minimum specifications is not sufficient. The Technical Volume shall include a detailed explanation demonstrating the Offeror's capabilities addressing the SOW, including, but not limited to:

- Ability to provide the guaranteed minimum data specifications in the SOW.
- Ability to meet data delivery requirements in the SOW, including demonstrated capability for satellite data downlink and operational data retrieval, if applicable.
- Ability to meet IT security standards in the SOW and CAR 1352.239-72, Security requirements for information technology resources.
- Risks that may affect timely delivery or data quality and how they will be mitigated, including launch or licensing delays or downlink limitations.
- Any additional capabilities or specifications that exceed the minimum requirement or increase the probability of successful performance.

(d) Identify all satellite constellations that will be used to collect data during the contract performance.

(e) If chosen for award, the applicable technical specifications offered in the Technical Volume will be incorporated in the resulting contract as the minimum delivery requirements.

3. Price Volume:

(a) The price volume shall be submitted electronically, in searchable Adobe PDF or in a combination of Microsoft Word and Excel. Excel files are not required.

(b) The Offeror's price proposal shall include a completed copy of the applicable Price/Availability Schedule(s) provided in Attachment 2. The price proposal may include a short narrative to explain any pricing provided. The Offeror shall include pricing for Level 0 and 1 data products per Sections II.4.a. And 4.b. of Attachment 1, the SOW, and also an option for Level 2 data products per Section VII. of the SOW. Final determination of level of purchased products shall be made at time of award. There is no page limit to the price volume.

Pricing shall include:

- i. A firm-fixed price for Phase 1: Preparation (1 month) of data meeting the specifications set forth in the Offeror's technical volume;
- ii. Firm-fixed price for Phase 2, Data Delivery (6 months) of data meeting the minimum specifications set forth in the Offeror's technical volume, and
- iii. Firm-fixed price for Phase 3, Evaluation (3 months) of data meeting the minimum specifications set forth in the Offeror's technical volume. Additional instructions are included in Attachment 2.

(c) The Government expects that this contract will be awarded based upon adequate price competition. However, in order to determine that offered prices are fair and reasonable, the Government reserves the right to request that the Offeror provide cost breakdowns to support proposed prices.

C. Submission

1. The subject of the email(s) should identify the company name and solicitation number.
2. Each volume shall be submitted electronically. NOAA limits the size of individual messages to 25MB. The 25MB limit includes the combined size of the message and the attachments. Multiple emails are permitted. It is the Offeror's responsibility to ensure that all three volumes of the proposal arrive by the required date and time. For the purpose of establishing timely receipt of a proposal, the time will be established based upon the email received time. The Government will not be responsible for any failure attributable to the transmission or receipt of the email, including the failure to meet stated deadlines. It is the Offeror's responsibility to confirm the Government's receipt of all transmitted information.
3. **Proposals must be received by 2:00 PM Eastern Time on April 30, 2026.**

003 Addendum to FAR 52.212-2

The following paragraphs are inserted in RFO 52.212-2 Evaluation—Commercial Products and Commercial Services (NOV 2021) (Deviation JAN 2026):

(d) Only offerors who have operational capabilities to provide data at the time this RFP is released will be considered for an award.

(e) The evaluation process shall proceed as follows:

1. Technical Capability

The Government will evaluate the Offeror's capability to successfully provide data that satisfies the requirements specified in the Statement of Work (SOW). The Government will evaluate the proposed data capabilities, including the ability to provide data with specifications that exceed or supplement the minimum requirements with particular attention to the SOW. In addition, the Government will evaluate the Offeror's demonstrated capability to successfully perform or exceed all other SOW requirements, including demonstrated on-orbit data collection; compliance with IT security standards; the ability to successfully complete timely data transfer; the ability to meet the Pilot projects schedule as specified in the SOW; demonstrated data delivery and format compliance; as well as identification of any risks that could affect data delivery.

- i. Proposals that exceed the minimum requirements/specifications may receive a higher technical rating if the enhancements are determined to be advantageous to the Government.
- ii. Offerors shall provide a statement affirming that the proposed capabilities are in a current operational state at the time the RFP was released.

2. Price

The Government will evaluate the Offeror's Price Proposal for completeness, reasonableness, and consistency. While the Government intends to award a contract without discussions, it reserves the right to conduct them if necessary. The Government will verify that the Offeror has provided all prices required by the Price Schedule (Attachment 2). Failure to provide pricing for all line items (CLINs) may result in the proposal being rejected as non-responsive. The Government will determine price

reasonableness in accordance with FAR 13.106-3 or FAR 15.404-1, primarily through price analysis. This involves comparing proposed prices to the following:

- *Competitive prices received in response to the solicitation.
- *Historical prices paid for the same or similar items.
- *Current market research and published price lists.
- *The Independent Government Cost Estimate (IGCE).

The Government will evaluate the Price Proposal for consistency with the Technical Proposal, and proposed prices must align with the approach described in the Technical Volume. Significant inconsistencies may be evidence of a lack of understanding of the requirements. The Government will analyze proposals to determine if they are unbalanced. A proposal is unbalanced if it is based on prices that are significantly less than cost for some work and significantly overstated for other work. The Government may reject an offer if the lack of balance poses an unacceptable risk to the Government.

(f) The Government may make an award to other than the lowest-price Offeror or the Offeror with the highest-rated technical proposal.

CAR 1352.233-70 Agency protests. (APR 2010)

(a) An agency protest may be filed with either: (1) The contracting officer, or (2) at a level above the contracting officer, with the appropriate agency Protest Decision Authority. See 64 FR 16,651 (April 6, 1999).

(b) Agency protests filed with the Contracting Officer shall be sent to the following address:

Suzanna Espinoza
Contracting Officer, Satellite and Information Acquisition Division
1325 East West Highway, SSMC2
Silver Spring, MD 20910

(c) Agency protests filed with the agency Protest Decision Authority shall be sent to the following address:

Keith Long
Branch Chief, Satellite and Information Acquisition Division
1325 East West Highway, SSMC2
Silver Spring, MD 20910

(d) A complete copy of all agency protests, including all attachments, shall be served upon the Contract Law Division of the Office of the General Counsel within one day of filing a protest with either the Contracting Officer or the Protest Decision Authority.

(e) Service upon the Contract Law Division shall be made as follows: U.S. Department of Commerce, Office of the General Counsel, Chief, Contract Law Division, Room 5893, Herbert C. Hoover Building, 14th Street and Constitution Avenue, NW., Washington, DC 20230. FAX: (202) 482-5858.

(End of clause)

**RFO 52.212-1 INSTRUCTIONS TO OFFERORS-COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES.
(SEP 2023) (Deviation JAN 2026)**

(a) *Submission of offers.* Submit signed and dated offers to the office specified in this solicitation at or before the exact time specified in this solicitation. As a minimum, offers shall include-

- (1) The solicitation number;
- (2) The name, address, telephone number of the Offeror;
- (3) The Offeror's Unique Entity Identifier (UEI) and, if applicable, Electronic Funds Transfer (EFT) indicator;
- (4) Information necessary to evaluate the factors contained in the provision at 52.212-2 or as described in the solicitation;
- (5) Responses to provisions that require Offeror completion of information, representations, and certifications (other than those collected via the System for Award Management (SAM)); and
- (6) A statement specifying the extent of agreement with all terms, conditions, and provisions included in the solicitation and any solicitation amendments.

(b) *Period for acceptance of offers.* The Offeror agrees to hold the prices in its offer firm for 90 calendar days from the date specified for receipt of offers, unless another time period is specified in an addendum to the solicitation.

(c) *Late submissions, modifications, revisions, and withdrawals of offers.*

- (1) Offerors are responsible for submitting offers and any modifications or revisions to the Government office designated in the solicitation by the time specified in the solicitation.
- (2) Any offer, modification, or revision received after the time specified for receipt of offers is "late" and will not be considered unless it is received before award is made and the Contracting Officer determines that accepting the late offer would not unduly delay the acquisition. However, a late modification of an otherwise successful offer that makes its terms more favorable to the Government will be considered at any time it is received and may be accepted.
- (3) If an emergency or unanticipated event interrupts normal Government processes so that offers cannot be received at the Government office designated for receipt of offers by the exact time specified in the solicitation, and urgent Government requirements preclude amendment of the solicitation or other notice of an extension of the closing date, the time specified for receipt of offers will be deemed to be extended to the same time of day specified in the solicitation on the first work day on which normal Government processes resume.

(d) *Contract award (not applicable to Invitation for Bids)*. The Government intends to evaluate offers and award a contract without discussions with Offerors. Therefore, the Offeror's initial offer should contain the Offeror's best terms. However, the Government reserves the right to conduct discussions, if necessary. The Government may reject any or all offers if such action is in the public interest, accept other than the lowest offer, and waive informalities and minor irregularities in offers received.

(e) *Debriefings*. If a postaward debriefing is given to requesting Offerors, the Government will disclose the following information, if applicable:

- (1) The agency's evaluation of the significant weak or deficient factors in the debriefed Offeror's offer.
- (2) The overall evaluated cost or price and technical rating of the successful Offeror and the debriefed Offeror and past performance information on the debriefed Offeror.
- (3) The overall ranking of all Offerors when any ranking was developed by the agency during source selection.
- (4) A summary of the rationale for award.
- (5) For acquisitions of commercial products, the make and model of the product to be delivered by the successful Offeror.
- (6) Reasonable responses to relevant questions posed by the debriefed Offeror as to whether the agency followed source-selection procedures set forth in the solicitation, applicable regulations, and other applicable authorities.

(End of provision)

**RFO 52.212-2 EVALUATION-COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES. (NOV 2021)
(Deviation JAN 2026)**

(a) The Government anticipates award of one or more contracts resulting from this solicitation to the responsible Offeror(s) whose proposal, conforming to the solicitation, will be most advantageous to the Government, price and other factors considered. The following factors shall be used to evaluate offers:

Factor 1: Technical Capability
Factor 2: Price

Order of Importance: Technical Capability is significantly more important than Price. However, Price will become more important as the technical evaluation of proposals becomes more equal. The Government will not make an award at a significantly higher price to achieve only a slightly superior technical approach.

(b) This acquisition is a Total Small Business Set-Aside. To be eligible for award, the offeror must be a small business under the NAICS code specified in this solicitation.

(c) Number of Awards: In accordance with FAR 52.212-1(h), the Government reserves the right to:

Make a single award;

Make multiple awards if it is determined to be in the Government's best interest; or

Make no award at all if the proposals received do not meet the Government's requirements or if it is otherwise determined to be in the Government's best interest.

(d) The Government will evaluate offers for award purposes by adding the total price for all options to the total price for the basic requirement. The Government may determine that an offer is unacceptable if the option prices are significantly unbalanced. Evaluation of options shall not obligate the Government to exercise the option(s).

(e) Notice of Award: A written notice of award or acceptance of an offer, mailed or otherwise furnished to the successful offeror within the time for acceptance specified in the offer, shall result in a binding contract without further action by either party.

(End of provision)

RFO 52.212-5 Reserved

Section 5 - REPRESENTATIONS AND CERTIFICATIONS

RFO 52.212-3 Reserved